

ADV. PRONoy KAMAT

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Date: - 27/11/2020

To,
Pascoal Trinidad
R/o Palbrika Mansion,
Near Our Lady of Rosary High School,
Dona-Paula Tiswadi, Goa

Sub: Your letter dated 20 /11/2020 for settlement of Special Civil Case No. 52/2013 submitted to Comunidade of Bambolim.

Sir,

With reference to above letter this is to inform you that the said letter was discussed by the managing committee of Comunidade of Bambolim in the presence of prominent Gaokars on 21/11/2020. However the Escrivav/Secretary of Comunidade of Bambolim from the office of the Administrator of Comunidade was not present and the minutes could not be recorded as per Code of Comunidade.

The Managing Committee and the Gaokars who were present after discussion need following clarifications from you:-

- a. That Comunidade wants 5000 Sq.mts land under survey no. 93/2 of Village Bambolim which is towards the village side and this area should be touching existing road. However as per court records the said area under survey No. 93/2 is sold to M/s Loonkar Developers who is also party in the suit and it was kept under mortgage to the bank by M/s Loonkar Developers. Therefore the managing committee of Comunidade of Bambolim wants to know how Mr. Pascoal Trinidad will be able to give it and the said encumbrance need to be cleared with the involvement of M/s Loonkar Developers before signing the consent terms and hence clarification on this point is required by the Comunidade.
- b. In case above issue is clarified then Proper plan of the plot of 5000 Sq.mts land under survey no. 93/2 with location, dimensions as well as demarcation with size of structures with specifications agreed to be constructed by you are required to be given by you to the Comunidade in order to place the same before the general body of the Comunidade to take the final decision which has to be called by with the approval of the Administrator of Comunidade.
- c. The letter dated 20/11/2020 is signed by you and it does not have signature of Mrs. Albertina Trinidad. Hence this needs to be clarified.

d. The settlement shall be only in respect of survey No. 93/2, 3 and 4 of village Bambolim and the Comunidade will proceed with survey No. 89/3 and 90/1 unless it is settled by the parties involved in Special Civil Case 4/2014/A and other cases.

e. The draft terms of settlement/consent terms need to be drawn in consultation with advocate for the Comunidade for placing before the General body for approval and any modifications if suggested by the General body then the same should be included and then further procedure for obtaining approval from the Administrative tribunal will have to be initiated.

f. You may file application for modification of earlier order under which direction was given for disposal of SCS 52/2013/A by Hon'ble High Court for which Comunidade will give consents since finalization of consent terms and approval from Administrative Tribunal will take considerable time and the court is insisting on day to day hearing.

g. The meeting managing committee of Comunidade of Bambolim is scheduled to meet on Sunday, 6/12/2020 and you are requested to clarify on above before above date which the managing Committee will discuss for further action.

Yours faithfully

Adv. Pronoy Kamat

Copy for information to

Comunidade of Bambolim